

Amendment No. 1 to HB1281

White
Signature of Sponsor

AMEND Senate Bill No. 1332*

House Bill No. 1281

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-2-130, is amended by adding the following as a new subsection:

(i) In addition to the requirements in subdivisions (b)(1)-(9), and notwithstanding subsection (h), before excusing a student from school to attend a released time course:

(1) The independent entity must identify each released time course instructor, as well as any other person holding a position with the independent entity requiring proximity to students participating in a released time course;

(2) Each released time course instructor for the independent entity, as well as any other person holding a position with the independent entity requiring proximity to students participating in a released time course, must:

(A) Submit to a criminal history background check prior to the beginning of the 2025-2026 school year or prior to becoming a released time course instructor or holding a position with the independent entity requiring proximity to students participating in a released time course and at least every five (5) years thereafter; and

(B) Release the results of the individual's criminal history records check to the independent entity for examination for purposes of verifying that the individual has not been convicted of an offense listed in § 49-5-417(a); and

(3) The independent entity must certify to the LEA in writing that:

(A) Each released time course instructor for the independent entity, as well as any other person holding a position with the independent entity requiring proximity to students participating in a released time course, has complied with the requirements in subdivision (i)(2); and

(B) No released time course instructor for the independent entity, or any other person holding a position with the independent entity requiring proximity to students participating in a released time course, has been convicted of an offense listed in § 49-5-417(a).

SECTION 2. This act takes effect July 1, 2025, the public welfare requiring it, and applies to released time courses for the 2025-2026 school year and each school year thereafter.